

Court No. - 29

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Learned counsel for the Electricity Department will file a counter affidavit indicating proof of the notice served upon the petitioner with regard to the provisional assessment within ten days.

List on 9.9.2016.

In the meantime, petitioner will deposit a sum of Rs. 50,000/- and submit a proof of such deposit on or before the next date.

Order Date :- 29.8.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

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Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

List has been revised.

No one appears for the petitioner to press the writ petition.

The writ petition is, accordingly, dismissed in default.

Interim order, if any, stands vacated.

Order Date :- 9.9.2016

AKJ

(Vipin Sinha, J.)

(Tarun Agarwala, J.)

Court No. - 29

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Pramod Kumar Srivastava, J.

Passed over on the request of counsel for the respondent.

Order Date :- 7.11.2016

SKS

(Pramod Kumar Srivastava, J) (Tarun Agarwala, J)

Court No. - 29

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Siddhartha Varma, J.

List has been revised. No one appears to press the recall application. It is dismissed for want of prosecution.

Order Date :- 15.11.2016

Ashish Pd.

(Siddhartha Varma, J.)

(Tarun Agarwala, J.)

Court No. - 39

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

Civil Misc. Recall/Restoration Application No. 272972 of 2016

This application has been filed for the recall of the order dated 15 November 2016 by which the restoration application no. 299700 of 2016 was dismissed for want of prosecution.

We have heard learned counsel for the applicant.

In view of the averments made in the affidavit filed in support of the application, the application is allowed. The recall application no. 299700 is restored to its original number.

Civil Misc. Recall / Restoration Application No. 299700 of 2016

This is an application for recalling the order dated 9 September 2016 by which dismissing the writ petition in default.

In view of the averments made in the affidavit filed in support of the application, the application is allowed. The order dated 9 September 2016 is recalled and the writ petition is restored to its original number.

Order Date :- 4.1.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 39

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

As prayed for by learned counsel for the petitioner list this petition on 03 April 2017.

Order Date :- 24.3.2017

vkj

(Dilip Gupta, J.)

(Siddhartha Varma, J.)

Court No. - 1

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Govind Mathur, J.

Hon'ble Ashok Kumar, J.

The cases of Sri Mahboob Ahmad, learned counsel for the respondents are reported to be adjourned till 30.11.2017.

List after adjournment.

Order Date :- 30.11.2017

Rameez

(Ashok Kumar, J.) (Govind Mathur, J.)

Court No. - 1

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Govind Mathur, J.

Hon'ble Ashok Kumar, J.

The cases of Sri Mahboob Ahmad, learned counsel appearing for the respondents are reported to be adjourned till 21.12.2017.

List thereafter.

Order Date :- 11.12.2017

SK Srivastava

(Ashok Kumar, J.)

(Govind Mathur, J.)

Court No. - 40

Case :- WRIT - C No. - 40167 of 2016

Petitioner :- Smt. Sangeeta Garg

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- Ajay Kumar, Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

This is a case of theft of electricity and subsequent assessment. Neither the counsel for the petitioner nor the counsel for the respondents are present.

We, however, find from the record that the writ petition was entertained and vide order dated 29.08.2016 the petitioner had been called upon to deposit a sum of Rs.50,000 and submit a proof of such deposit on or before the next date fixed.

The respondents have not filed any counter affidavit.

The writ petition was dismissed twice in default and has been restored. Today again the same situation exists.

From the recall application filed earlier we find that a sum of Rs.50,000/- is alleged to have been deposited on 07.09. 2016.

From the order dated 29.08.2016 we find that the respondents were called upon to file an affidavit with regard to any notice having been served in respect of the provisional assessment. There is nothing on record to indicate about service of notice before the provisional assessment or final assessment. The issue appears to be coupled with one of theft of electricity.

In the event the FIR has been lodged then it is open to the petitioner to approach for compounding of the offence under Section 152 of the Indian Electricity Act, 2003.

If no provisional assessment has been carried out in accordance with the provisions of the Indian Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 then in that event the Executive Engineer, respondent no.2, shall be approached by the petitioner who shall pass an appropriate order with regard to final assessment, if not already passed. The recovery proceedings will abide by the order to be passed by the Executive Engineer.

The writ petition is disposed of with the directions aforesaid.

Order Date :- 24.4.2018

KA